

TENTATIVE RULING(S) FOR June 1, 2026

Department S37 – Judge Winston Keh

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CIVSB2224020

Ruiz vs. Tayrien

TENTATIVE RULING(S):

Before the Court is Defendants Steven and Maria's motion for summary judgment or alternatively summary adjudication. Plaintiff opposes and Defendants reply.

The motion was originally set for hearing on May 7, 2026. As set forth below, Plaintiffs concede that Defendants Steven and Maria did not negligently entrust the vehicle to Defendant James. However, Plaintiffs instead contend Steven and Maria owed a duty to take additional affirmative steps to prevent James from driving the vehicle given James's background. Neither side addressed Civil Code section 1714 or the *Rowland* factors. Therefore, the Court continued the hearing and requested further briefing to address these issues. Defendants subsequently filed a supplemental opening brief, Plaintiffs filed a supplemental opposition brief, and

Defendants filed a supplemental reply. The question is now properly before the Court. Having fully considered all the submitted papers, the Court rules as follows:

Evidentiary Objections

Plaintiff asserts objections to Defendant's material facts in its separate statement. The objections are improper—they address the facts rather than the evidence. Objections may be made only to evidence. California Rules of Court, rules 3.1352 and 3.1354 both state they apply to "objections to evidence," and Code of Civil Procedure section 437c, subdivision (b)(5) also refers to "[e]videntiary objections." Separate statements are not evidence. (*Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 178, fn. 4.) Because undisputed facts and argument are not evidence, they cannot be objected to. Since these "evidentiary" objections are improper, they are overruled.

Analysis

The first cause of action for negligence is only brought against Defendant James for his role as the negligent driver in the accident who was allegedly under the influence of "Duster" at the time of the accident. (FAC, ¶¶10-33.) James is Maria and Steven's adult child. (Tayrien Decl., ¶12.) This motion is not brought by James, but rather only by Maria and Steven.

The second cause of action for negligence is pled against Steven and Maria. Plaintiff alleges Steven and Maria owned the vehicle James drove at the time of the accident (a black 2009 M3 BMW) and breached their respective duties owed to Plaintiff by (1) not securing the keys to the vehicle to prevent James from taking and using the vehicle; (2) not monitoring James' access to their vehicle knowing he was involved in an accident in the week prior to the July 3, 2022 accident involving Plaintiffs; and (3) by not taking all reasonable and precautionary actions to prevent James, a known bad, negligent, and/or dangerous driver access to the keys and/or the ability to drive their vehicle. (FAC, ¶¶35-36; see also ¶20.) Plaintiffs cite these allegations and contend that this is not a typical negligent entrustment case. Rather, they contend Steven and Maria had a duty to affirmatively prevent James from accessing and driving the vehicle due to their knowledge of his background.

The motion is supported by 28 material facts (UFs); declarations of Plaintiff Maria and counsel; Defendants Steven and Maria's written discovery responses; and title to the vehicle Defendant James was driving at the time of the accident.

Defendant Maria declares she lives at a specified address in Highland, California, with her husband Steven. She is not the registered owner of the vehicle, is not on title, and has no ownership interest. Maria attaches a copy of title showing Steven as sole owner. (Tayrien Decl., ¶3; Exh. A.)

Maria further declares in or around early 2021, approximately 18 months prior to the incident, Steven disconnected the battery of the vehicle, rendering it inoperable. The vehicle's registration and insurance were allowed to lapse because it was no longer drivable or being used. From that time through the date of the incident, Maria believed the vehicle was inoperable and could not be started or driven. To her knowledge, the vehicle was not operated during this period. (Tayrien Decl., ¶¶4-5.)

Maria further declares prior to the incident, she did not give her son James express permission to use or operate the vehicle. Maria also did not give implied permission since she had no reason to believe the vehicle could be driven given its inoperable condition. Steven never gave James permission, implied or otherwise, to use or operate the vehicle. While James, as a member of their household, theoretically had physical access to the keys if he searched for them, this did not imply permission due to the inoperable condition. (Tayrien Decl., ¶6.)

Maria further declares she was unaware James had made the vehicle operable or had taken it on July 3, 2022 until after the incident occurred. Maria did not take specific steps to secure the vehicle because she believed it was inoperable. Prior to the incident, Maria was not aware James had any issues with drug use or intoxication while driving. She did not know he would operate any vehicle while under the influence of intoxicants. Steven was equally unaware. (Tayrien Decl., ¶¶7-9.)

Maria further declares although James was involved in an accident on July 2, 2022 while driving Maria's car, she did not consider that to show he was a bad, negligent, or dangerous driver. There were no citations issued to James, and she had no reason to believe the accident

was from recklessness or intoxication. Maria and Steven were aware of James's prior offenses, including a juvenile petition for shooting at an inhabited dwelling in 2018, petty theft in 2015, shoplifting in 2017, and reckless driving in 2019. The reckless driving incident resulted in multiple warrants for James's failure to appear and was resolved in January 2021 with a plea to a lesser offense. Since those resolutions, Maria and James did not consider James a dangerous driver or that he required restricted access to the vehicle. The non-driving offenses were juvenile matters without adult convictions and did not involve vehicles, intoxication, or violence towards others. (Tayrien Decl., ¶¶10-11.)

Maria further declares although James resided at the home as an adult, he did not have general authority to use family vehicles without asking for permission. Maria first learned of the incident when a bystander at the scene used James' cell phone to call Maria. The accident did not occur at night, and Maria did not observe James start or operate the vehicle. (Tayrien Decl., ¶12.)

In verified written discovery responses, Steven and Maria each stated much the same. (Responses to Special Interrogatory Nos. 1, 18 [Nangano Decl., Exhs. C, E]; Responses to Form Interrogatory No. 17.1 [Nangano Decl., Exh. D].) As indicated above, Plaintiffs asserts improper evidentiary objections to Defendants' material facts. Nevertheless, in the body of the opposition brief Plaintiff correctly observes that interrogatory responses may only be asserted *against* the responding party. (Code Civ. Proc., §2030.410.) Here, Defendants are seek to use their own discovery responses against Plaintiff—which appears improper. Nevertheless, as the same assertions are made in Maria's declaration the objection is of no consequence. Plaintiff does not dispute that neither Steven nor Maria gave James express or implied permission to use the vehicle. (UF 7, 8, undisputed.)

The opposition is supported by the declaration of counsel authenticating Steven's death certificate.

Steven's death. As a threshold issue, Plaintiffs argue Defendant Steven lacks standing to bring this motion because he is deceased. Plaintiffs' counsel indicate they learned only recently on April 7, 2026 that Steven died in mid-December 2025. (Schade Decl., Exh. A.) Plaintiffs indicate

they have not had the opportunity to substitute in Steven's estate as the proper Defendant in this case.

A cause of action against a decedent may be asserted against the decedent's personal representative or, to the extent provided by statute, against the decedent's successor in interest. (Code Civ. Proc., §377.40.) Therefore, technically Steven's personal representative or successor in interest should be substituted in his stead. It would be unreasonable to deny the motion on this ground, as the analysis is exactly the same regardless of whether Steven or his personal representative/successor seeks summary judgment. Plaintiffs cite no authority that the motion cannot proceed on its merits now. The result is the same either way. If Plaintiffs for some reason fail or refuse to substitute Steven's personal representative then the case must be dismissed against Steven anyway since he is no longer a proper party in light of his death.

Negligent entrustment. "Every owner of a motor vehicle is liable and responsible for death or injury to person or property resulting from a negligent or wrongful act or omission in the operation of the motor vehicle, in the business of the owner or otherwise, by any person using or operating the same with the permission, express or implied, of the owner." (Veh. Code, §17150.)

The Court of Appeal addressed negligent entrustment claims in *Syah v. Johnson* (1996) 247 Cal.App.2d 534 (disapproved on other grounds in *Diaz v. Carcamo* (2011) 51 Cal.4th 1148): The doctrine of "negligent entrustment" is clearly distinguishable from the theory of "vicarious liability." Negligent entrustment is a common law liability doctrine. [Citation.] Conversely, the obligation of a lending owner of an automobile is one of statutory liability. [Citation.] An owner of an automobile may be independently negligent in entrusting it to an incompetent driver. [Citation.] California is one of several states which recognizes the liability of an automobile owner who has entrusted a car to an incompetent, reckless, or inexperienced *driver*, and has supplemented the common law doctrine of negligent entrustment by enactment of a specific consent statute. (See 163 A.L.R. 1418; Veh. Code, §§17150-17157.) (*Id.* at pp. 538-539.)

"It is generally recognized that one who places or entrusts his motor vehicle in the hands of one whom he knows, or from the circumstances is charged with knowing, is incompetent or unfit to drive, may be held liable for an injury inflicted by the use made thereof by that driver, provided the plaintiff can establish that the injury complained of was proximately caused by the driver's disqualification, incompetency, inexperience or recklessness

"Liability for the negligence of the incompetent driver to whom an automobile is entrusted does not arise out of the relationship of the parties, but from the act of entrustment of the motor vehicle, with permission to operate the same, to one whose incompetency, inexperience, or recklessness is known or should have been known by the owner." [Citations.]

Under the theory of "negligent entrustment," liability is imposed on vehicle owner or permitter because of his own independent negligence and not the negligence of the driver, in the event plaintiff can prove that the injury or death resulting therefrom was proximately caused by the driver's incompetency.

(*Id.* at p. 539.)

Defendants Maria and Steven present several arguments why they are not liable for negligent entrustment. First, Defendants argue Maria was not a registered owner of the vehicle. Plaintiffs push back on this point by contending Defendants did not provide any evidence showing the vehicle was not co-owned by Maria as community property by operation of law.

However, the Court need not even address Maria's ownership because Plaintiffs concede that neither Maria nor Steven gave permission to James to drive the vehicle. (UF 7, 8, undisputed.) By its very name, a claim for "negligent entrustment" requires a defendant to have entrusted the vehicle to the driver. Plaintiffs' failure to dispute UFs 7 and 8 means that there was no such entrustment.

Civil Code section 1714. However, in their original opposition papers Plaintiffs argued something more was required. Indeed, paragraphs 20 and 36 of the FAC expressly allege Steven and Maria knew James was a dangerous driver and should have taken more steps to stop him from driving the subject vehicle even though he did not have permission to drive

it. Plaintiffs contend they should have secured the keys, monitored his access because they knew he was a poor driver, and taken other “reasonable and precautionary actions” to stop him from taking the car.

The issue here is the extent of Steven and Maria’s duty. This is not a typical negligent entrustment case. Plaintiffs argue the duty required Steven and Maria not only to withhold their permission for James to drive the vehicle, but to take additional steps to affirmatively prevent him from driving. James was an adult, but Plaintiffs would impose a duty on Maria and Steven to control his behavior due to his past history (both vehicular and non-vehicular).

“Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself...” (Civ. Code, §1714, subd. (a).)

Civil Code section 1714 establishes a broad rule, but it is not without limits. (*Brown, supra*, 11 Cal.5th at p. 214.) It “imposes a general duty of care on a defendant only when it is the defendant who has “created a risk” of harm to the plaintiff.” (*Ibid.*) “The law does not impose the same duty on a defendant who did not contribute to the risk that the plaintiff would suffer the harm alleged.” (*Ibid.*) Generally, a defendant cannot be held liable in negligence for harms it did not cause unless there are special circumstances, such as a special relationship, that give the defendant an affirmative duty to protect the victim from another’s harm. (*Id.* a pp. 214, 220.) Further, even where there is a legal basis for imposing the default duty of care—as in cases where the defendant has increased the risk of harm to the plaintiff—courts have the power and obligation to examine whether considerations of public policy warrant limiting that duty. (*A.L. v. Harbor Developmental Disabilities Foundation* (2024) 102 Cal.App.5th 477, 488 [321 Cal. Rptr. 3d 575]; *Brown, supra*, 11 Cal.5th at pp. 209, 217–219.) In *Rowland v. Christian* (1968) 69 Cal.2d 108 [70 Cal. Rptr. 97, 443 P.2d 561], our Supreme Court summarized the policy considerations that must be balanced in determining whether to limit or excuse a defendant’s duty of care. (*Id.* at pp. 112–113.) They are: “the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the

defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved.”

(*Tavares v. Zipcar, Inc.* (2026) 118 Cal.App.5th 219, 228-229.)

The supplemental briefing addresses these *Rowland* factors. Defendants argue the risk was not foreseeable because the vehicle had been inoperable, the battery was disconnected, and there was no reason to believe the vehicle could be started or driven. James lacked a key and had to ask permission before using a family vehicle. Defendants concede Plaintiffs suffered injury, but contend there was no close connection between the failure to secure the keys and the accident. Defendants further argue there was no moral blame because they reasonably believed the vehicle was unusable and therefore could not have anticipated James would be able to drive it. Defendants further argue the law already requires owners to act reasonably with respect to their vehicles, so imposing a greater duty would not prevent future harm. Defendants further argue imposition of a duty would require extraordinary security measures such as locked garages, hidden keys, and disabling parts beyond battery disconnection such as to impose a great burden. Defendants further contend insurance considerations are neutral.

In opposition, Plaintiffs argue leaving motor vehicles accessible to an adult household member with a documented, escalating history of violent and reckless conduct is unquestionably likely to result in a traffic collision injuring third parties. Plaintiffs note James had crashed Maria's vehicle the day before the accident involving Plaintiffs. Plaintiffs argue this placed Maria on notice that James would access and dangerously operate an unsecured family vehicle. Plaintiffs contend the subject vehicle was actually started and therefore could not be characterized as truly inoperable. Plaintiffs note James's criminal history. Plaintiffs correctly note the accident caused injury. Plaintiffs assert a close causal connection between Maria and Steven's decision to leave the vehicle accessible with keys unsecured, James's dangerous propensities known to Maria and Steven, and the accident. Plaintiffs further argue moral blame attaches because Defendants had knowledge of the danger but took no steps to prevent

foreseeable harm. Plaintiffs further argue requiring vehicle owners to take reasonable steps to secure their vehicles from a household member with dangerous propensities serves the paramount interest in public safety. Plaintiffs argue the burden would be modest: securing keys, restricting access, or taking reasonable measures to prevent a known dangerous individual from accessing a vehicle. Plaintiffs agree insurance considerations are neutral. Plaintiffs additionally argue an adverse ruling would invade the jury's province.

The only factor favoring Plaintiffs here is the certainty of injury. Removal of the battery from the vehicle rendered this accident unforeseeable. Defendants reasonably believed James could not drive the vehicle, so there is no connection between the conduct and the injury and no moral blame attaches. Imposing a heightened duty would not prevent future harm because Defendants already believed the vehicle was undrivable. Defendants correctly note Plaintiffs would have the Court impose a "boundless" duty. Indeed, Plaintiffs ask the Court to impose nearly absolute or strict liability and to proscribe a level of duty constituting an extreme burden with very little increased safety benefit to the public. As indicated, both sides agree the insurance factor is neutral.

Therefore, the Court finds there was no duty to secure the car keys for an inoperable vehicle and grant summary adjudication on the second cause of action for negligence in favor of Defendants Steven and Maria.

Third cause of action for negligent infliction of emotional distress. Negligent infliction of emotional distress is not an independent tort, but the tort of negligence with its traditional elements. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072.) Since the Court finds that Maria and Steven are not liable for negligence in failing to prevent James from driving, then this cause of action necessarily fails as to Maria and James as well and summary judgment is appropriate.

RULING

For all the reasons stated above, the Court rules as follows:

1. Overrules Plaintiffs' evidentiary objections to Defendants' material facts as improper;
and

2. Grants Defendants Maria and Steven's motion for summary judgment.

- a. There is no dispute that Plaintiffs cannot maintain a negligent entrustment theory against Maria and Steven.
- b. Maria and Steven did not have a duty under Civil Code section 1714 to take further steps to stop James from driving the subject vehicle given his past history. The factors established in *Rowland v. Christian* (1968) 69 Cal.2d 108 do not support the existence of such a duty. The only factor favoring the existence of a duty is the degree of certainty that Plaintiffs suffered injury. The harm was not foreseeable; the connection between Defendants' conduct and the injury suffered was not close; there is no moral blame; imposition of liability would not prevent future harm; the burden of a duty would be heavy; and the benefit to the public would be negligible. The insurance factor is neutral.

Evidentiary Basis:

Defendants' Material Facts Nos. 3-24

Tayrien Decl., ¶¶4-14